

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #13	CCRB Case #: 201900455	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 01/06/2019 2:18 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/20/2021	Precinct: 101		
Date/Time CV Reported Sun, 01/06/2019 4:29 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/16/2019 11:03 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Anthony Aquilino	11097	956392	101 PCT
2. POM Joseph Demeo	29986	951251	101 PCT
3. POM Michael Berardi	13922	955752	101 PCT
4. POF Bernadette Kachmar	05722	960516	101 PCT
5. An officer			101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Discourtesy: An officer acted discourteously toward § 87(2)(b)	A . Officer(s) Unidentified
B . POM Anthony Aquilino	Abuse: Police Officer Anthony Aquilino entered § 87(2)(b) in Queens.	B . Exonerated
C . POM Joseph Demeo	Abuse: Police Officer Joseph Demeo entered § 87(2)(b) in Queens.	C . Exonerated
D . POM Michael Berardi	Abuse: Police Officer Michael Berardi entered § 87(2)(b) in Queens.	D . Exonerated
E . POF Bernadette Kachmar	Abuse: Police Officer Bernadette Kachmar entered § 87(2)(b) in Queens.	E . Exonerated
F . POM Anthony Aquilino	Abuse: Police Officer Anthony Aquilino refused to provide his name to § 87(2)(b)	F . Unsubstantiated
G . POM Joseph Demeo	Abuse: Police Officer Joseph Demeo refused to provide his name to § 87(2)(b)	G . Unsubstantiated
H . POM Michael Berardi	Abuse: Police Officer Michael Berardi refused to provide his name to § 87(2)(b)	H . Unsubstantiated
I . POF Bernadette Kachmar	Abuse: Police Officer Bernadette Kachmar refused to provide her name to § 87(2)(b)	I . Unsubstantiated
J . An officer	Abuse: An officer threatened to arrest § 87(2)(b)	J . Officer(s) Unidentified
K . An officer	Abuse: An officer damaged § 87(2)(b)'s property.	K . Officer(s) Unidentified

Case Summary

On January 6, 2019, § 87(2)(b) filed this complaint by phone with IAB. It was received at the CCRB on January 16, 2019.

On January 6, 2019, at about 2:18 p.m., at § 87(2)(b) in Queens, § 87(2)(b) became involved in a dispute with her daughter, § 87(2)(b) and refused to allow § 87(2)(b) to enter § 87(2)(b)'s apartment. PO Anthony Aquilino, PO Joseph Demeo, PO Michael Berardi, and PO Bernadette Kachmar of the 101st Precinct responded to the location. An officer allegedly kicked the apartment door repeatedly (**Allegation A: Discourtesy:** § 87(2)(g) § 87(2)(b)). PO Aquilino, PO Demeo, PO Berardi, and PO Kachmar entered the apartment (**Allegations B-E: Abuse of Authority,** § 87(2)(g) PO Aquilino, PO Demeo, PO Berardi, and PO Kachmar allegedly refused to provide their names to § 87(2)(b) (**Allegations F-I: Abuse of Authority,** § 87(2)(g) § 87(2)(b) An officer allegedly threatened to arrest § 87(2)(b) (**Allegation J: Abuse of Authority,** § 87(2)(g) § 87(2)(b)). An officer allegedly damaged § 87(2)(b)'s property (**Allegation K: Abuse of Authority,** § 87(2)(g) § 87(2)(b)). No arrests or summonses resulted from this incident.

There is no video evidence in this case.

Findings and Recommendations

Allegation (A) Discourtesy: An officer acted discourteously toward § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Anthony Aquilino entered § 87(2)(b) in Queens.

Allegation (C) Abuse of Authority: Police Officer Joseph Demeo entered § 87(2)(b) in Queens.

Allegation (D) Abuse of Authority: Police Officer Michael Berardi entered § 87(2)(b) in Queens.

Allegation (E) Abuse of Authority: Police Officer Bernadette Kachmar entered § 87(2)(b) in Queens.

§ 87(2)(b) testified that her daughter, § 87(2)(b) came to her apartment to retrieve personal belongings pursuant to a court order issued the day before (BR01). § 87(2)(b) refused to allow § 87(2)(b) inside because § 87(2)(b) did not arrive at the time specified in the court order. Officers came to the apartment and an officer who § 87(2)(b) did not see started kicking her front door repeatedly. § 87(2)(b) believed an officer was kicking her door because an officer started ordering her to open the door at the same time. § 87(2)(b) did not see the officers because she never opened the door for them and remained inside her apartment. § 87(2)(b) testified that she became afraid during the encounter, went to a bedroom, and shut the door. § 87(2)(b) did not know how, but officers were able to get inside the apartment and told § 87(2)(b) to get her belongings.

§ 87(2)(b) was unavailable to the investigation (See IAs for contact attempts).

§ 87(2)(b) the management company which operates § 87(2)(b), had no record of any building staff who were involved in this incident (BR07).

Event documents show that § 87(2)(b) called 911 and reported that her mother refused to allow her to retrieve her belongings (BR02).

A temporary order of protection was issued on January 5, 2019 which granted § 87(2)(b) permission to enter § 87(2)(b) on January 6, 2019, between 12:00 p.m. and 9:00 p.m. accompanied by NYPD officers to her retrieve personal belongings (BR08).

PO Aquilino, PO Demeo, PO Berardi, and PO Kachmar were generally consistent in describing that they arrived at the location in response to § 87(2)(b) 911 call (BR03-06). § 87(2)(b) presented the officers with a court order which allowed her to enter the premises with police officers to retrieve her personal belongings. Collectively, the officers knocked on the door and explained to § 87(2)(b) that § 87(2)(b) had a court order allowing her to enter. However, § 87(2)(b) refused to open the door. Nobody kicked the door. An unidentified maintenance worker from the building came and opened the apartment door with a key. The officers entered to facilitate the safe execution of the court order by allowing § 87(2)(b) to retrieve her property.

§ 87(2)(g)

§ 87(2)(g)

Allegation (F) Abuse of Authority: Police Officer Anthony Aquilino refused to provide his name to § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Joseph Demeo refused to provide his name to § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Michael Berardi refused to provide his name to § 87(2)(b)

Allegation (I) Abuse of Authority: Police Officer Bernadette Kachmar refused to provide her name to § 87(2)(b)

§ 87(2)(b) testified that she became afraid during the incident, went to a bedroom, and shut the door. After § 87(2)(b) heard the officers inside her apartment, she called 911 to file a complaint against them. § 87(2)(b) was transferred to IAB and she complained that officers kicked her door open. The IAB investigator told § 87(2)(b) to get the officers' names. Through the closed bedroom door, § 87(2)(b) asked the officers for their names. One officer responded, "Come out and get it." The other three officers did not respond and did not provide their names. § 87(2)(b) knew all four officers were inside her apartment because she heard four distinct voices, three male and one female, speaking amongst themselves.

As discussed above, § 87(2)(b) was unavailable to the investigation and no statement could be obtained from her (See IAs for contact attempts).

PO Aquilino, PO Demeo, PO Berardi, and PO Kachmar were consistent in describing that they were inside the apartment briefly while § 87(2)(b) gathered belongings from her bedroom. § 87(2)(b) never asked any of the officers for their names and no officer refused to provide their name to her.

Event documents show that a final disposition for the job related to this incident was transmitted at 2:57 p.m. Event documents show that § 87(2)(b) called to file a complaint about the incident about an hour and a half later at 4:26 p.m. (BR09). The associated 911 recording and the IAB Command Center recordings do not contain any conversation between § 87(2)(b) and officers (BR10-12). During the call, the IAB detective asked § 87(2)(b) if she had the officers' names and § 87(2)(b) said that the officers would not provide her with their names. The 101st Precinct Event Summary did not reveal any other 911 calls from § 87(2)(b) (BR14).

§ 87(2)(g)

Allegation (J) Abuse of Authority: An officer threatened to arrest § 87(2)(b)

Allegation (K) Abuse of Authority: An officer damaged § 87(2)(b)'s property.

§ 87(2)(b) testified that through the closed bedroom door, a male officer told her that the officers were going to come back and arrest her. § 87(2)(b) could not provide distinguishing information about the officer who made this statement because she never saw any of the officers and she could not describe anything distinctive about the officers' voices. § 87(2)(b) questioned why the officers would arrest her, became upset, and started crying. § 87(2)(b) and the officers left her apartment and at that point, § 87(2)(b) exited her bedroom. When § 87(2)(b) left her room, she observed that the chain link to her front door was detached from the wall and the door knob to her youngest daughter's room was pulled out. § 87(2)(b) did not take any photos of the damage.

PO Aquilino, PO Demeo, PO Berardi, and PO Kachmar all denied that anyone told § 87(2)(b) they were going to come back and arrest her and denied that anyone threatened to arrest § 87(2)(b) at all during this incident. PO Demeo, PO Berardi, and PO Kachmar testified there was nothing for which § 87(2)(b) could have been arrested. PO Aquilino testified that § 87(2)(b) could have been arrested for obstructing governmental administration for refusing to allow § 87(2)(b) inside in compliance with the court order. All four officers interviewed denied that the front door sustained any damage, either caused by them or the maintenance worker who opened the door. All four officers interviewed stated that § 87(2)(b) entered her bedroom without issue, retrieved her belongings, and neither § 87(2)(b) nor any other officers attempted to gain entry to any other room in the apartment. No officer did anything which caused any damage to any of the doors in § 87(2)(b)'s apartment.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the second complaint to which § 87(2)(b) has been a party (BR13).
 - § 87(2)(b)
- PO Aquilino, PO Berardi, and PO Kachmar have been members of the service for five, six, and four years, respectively, and this is the first complaint to which they have been subjects.
- PO Demeo has been a member of the service for eight years and has been a subject in one CCRB complaint and six allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- On February 12, 2019, this case was sent to mediation and on October 3, 2019, this case was returned to investigation as the complaint was no longer suitable for mediation.
- On March 5, 2019, a Notice of Claim request was submitted to the NYC Office of the Comptroller and will be added to the case file upon its receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date